AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT

1. CONTRACT ID CODE	PAGE OF PAGES
	1 | 7

2. AMENDMENT/MODIFICATION NUMBER	3. EFFECTIVE DATE	4. REQUISITION/PURCHASE REQUISITION NUMBER	5. PROJECT NUMBER *(If applicable)*
0001	11/30/2021		

6. ISSUED BY	CODE	7. ADMINISTERED BY *(If other than Item 6)*	CODE
U.S. Department of Energy SPRPMO 900 Commerce Road East New Orleans, LA 70123	892435		

8. NAME AND ADDRESS OF CONTRACTOR *(Number, street, county, State and ZIP Code)*	(X)	9A. AMENDMENT OF SOLICITATION NUMBER / 9B. DATED *(SEE ITEM 11)*	10A. MODIFICATION OF CONTRACT/ORDER NUMBER / 10B. DATED (SEE ITEM 13)
	☒	DE-RP96-22PO00001 11/24/2021	
	☐		

CODE	FACILITY CODE

11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS

☒ The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offers ☐ is extended ☒ not extended.

Offers must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended, by one of the following methods: (a) By completing items 8 and 15, and returning ___1___ copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted; or (c) By separate letter or electronic communication which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER. If by virtue of this amendment you desire to change an offer already submitted, such change may be made by letter or electronic communication, provided each letter or electronic communication makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.

12. ACCOUNTING AND APPROPRIATION DATA *(If required)*

13. THIS ITEM APPLIES ONLY TO MODIFICATIONS OF CONTRACTS/ORDERS. IT MODIFIES THE CONTRACT/ORDER NUMBER AS DESCRIBED IN ITEM 14.

CHECK ONE	
☐	A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: *(Specify authority)* THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NUMBER IN ITEM 10A.
☐	B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES *(such as changes in paying office, appropriation data, etc.)* SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(b).
☐	C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:
☐	D. OTHER *(Specify type of modification and authority)*

E. IMPORTANT: Contractor ☐ is not ☐ is required to sign this document and return _____copies to the issuing office.

14. DESCRIPTION OF AMENDMENT/MODIFICATION (*Organized by UCF section headings, including solicitation/contract subject matter where feasible.)*

The above numbered solicitation is amended as shown on Page 2.

The Proposal Due Date of December 6, 2021, 10:00am Central Time, remains unchanged.

Except as provided herein, all terms and conditions of the document referenced in Item 9A or 10A, as heretofore changed, remains unchanged and in full force and effect.

15A. NAME AND TITLE OF SIGNER *(Type or print)*		16A. NAME AND TITLE OF CONTRACTING OFFICER *(Type or print)*	
15B. CONTRACTOR/OFFEROR	15C. DATE SIGNED	16B UNITED STATES OF AMERICA	16C. DATE SIGNED
(Signature of person authorized to sign)		*(Signature of Contracting Officer)*	

Section J, Exhibit A.1, Offer Form –
The offer form is hereby deleted and shall be replaced with the attached revised offer form.

Section J, Exhibit I, Sample – Offer Guarantee Standby Letter of Credit and Sample – Payment and Performance Letter of Credit –
Pages J-46 through J-49 are hereby deleted and shall be replaced with the attached revised Pages J-46 through J-49.

Section L, Paragraph L.5(b)(6)(h) –
This paragraph is revised to read as follows:

"(h) If offer(s) are not accepted, the offer guarantee Letters of Credit will be returned within 5 business days after awards are made. If offer(s) are accepted, the offer guarantee Letters of Credit will be returned upon receipt of a satisfactory payment and performance Letter of Credit."

EXHIBIT A.1

Line Item	SPR Site	Volume Offered [1]	Period of Exchange Oil delivery from SPR (month or months)	Period of Return Oil delivery to SPR (No.1/No.2/No.3)	Return Oil Grade Type [2]	API	Sulfur	Delivery Mode	Location
1									
2									
3									
4									
5									

SPR Site Code:	
BM	Bryan Mound
BH	Big Hill
WH	West Hackberry
BC	Bayou Choctaw

Delivery Modes	
P/L	Pipeline
US	US Flag Vessel
FF	Foreign Flag Vessel

Location
Freeport Terminal
Nederland Terminal
St. James Terminal
LCMS (WH)
P66 at Beaumont (BH)

Note 1: Total award to Contractor will not exceed 10 Million barrels.

Note 2: A comprehensive assay is required to be submitted when Offer Form is submitted to the Government along with the Crude Oil Quality checklist for sour crude offered at Exhibits C-1.1 on Exchange Grade crude type offered for Return Oil.

Exhibit I

SAMPLE - OFFER GUARANTEE STANDBY LETTER OF CREDIT

BANK LETTERHEAD
IRREVOCABLE STANDBY LETTER OF CREDIT

Date:_____

To: U.S. Department of Energy
Strategic Petroleum Reserve
900 Commerce Road East
New Orleans, LA 70123

Attn: (Mary Roark)

AMOUNT OF LETTER OF CREDIT: U.S. $ _____(_____)
CONTRACTOR: _____
REQUEST FOR PROPOSAL NO: DE-RP96-22PO00001
LETTER OF CREDIT NO: _____
EXPIRATION DATE: January 5, 2022
AMERICAN BANKERS ASSOCIATION (ABA) NO: _____

To whom it may concern:

We hereby establish in the U.S. Department of Energy's favor our irrevocable standby Letter of Credit effective immediately for the account of our customer in response to the above U.S. Department of Energy's Request for Proposal, including any amendments thereto, for the exchange of Strategic Petroleum Reserve petroleum. This Letter of Credit expires at least 30 calendar days after the date set for receipt of offers.

This letter of credit is available by your draft/s at sight, drawn on us and accompanied by a manually signed statement that the signer is an authorized representative of the Department of Energy, and the following statement:

> **"THIS DRAWING OF U.S. $_____ (_____) AGAINST YOUR LETTER OF CREDIT NUMBERED _____, DATED _____, IS DUE THE U.S. GOVERNMENT BECAUSE OF THE FAILURE OF _(*CONTRACTOR*)_ TO HONOR ITS OFFER TO ENTER INTO A CONTRACT FOR THE EXCHANGE OF SPR PETROLEUM FROM THE STRATEGIC PETROLEUM RESERVE, IN ACCORDANCE WITH THE U.S. GOVERNMENT'S REQUEST FOR PROPOSAL NO. DE-RP96-22PO00001 INCLUDING ANY AMENDMENTS THERETO."**

Drafts must be presented for payment on or before the expiration date of this Letter of Credit at our bank. The Government may make multiple drafts against this Letter of Credit.

Upon receipt of the U.S. Department of Energy's demand by hand, mail express delivery, or other means, at our office located at_____, we will honor the demand and make payment, by 3 p.m. Eastern Time of the third business day following receipt of the demand by wire transfer of funds as a deposit to the account of the U.S. Treasury over the Fedwire Funds Service. The information to be included in each transfer will be as provided in the above referenced Notice of Sale.

This Letter of Credit is subject to the Uniform Customs and Practice for Documentary Credits (2007 Revision, International Chamber of Commerce Publication no. 600) and except as may be inconsistent therewith, to the Uniform Commercial Code in effect on the date of issuance of this Letter of Credit in the state in which the issuer's head office within the United States is located.

We hereby agree with you that all drafts drawn under and in compliance with the terms of this Letter of Credit will be duly honored upon presentation and delivery of the above documents for payment at our bank on or before the expiration date.

In the event of a bankruptcy filing by the applicant prior to the expiration date of this letter of credit, the expiration date of this letter of credit will automatically be extended by one hundred twenty (120) calendar days from the expiration date.

Address all communications regarding this Letter of Credit to (name and phone number).

Very truly yours,

_____
(Authorized Signature)

_____
(Typed Name and Title)

INSTRUCTIONS FOR OFFER GUARANTEE LETTER OF CREDIT

1. The depository institution must be an account holder with the Federal Reserve Banking system with permission to send Fedwires and must have Fedwire eligibility Funds status of either Eligible or Eligible – Settlement-only.
2. Letter of Credit must not vary in substance from this attachment. Provide a copy of this attachment to your bank.
3. Banks shall fill in blanks EXCEPT those in the drawing statement**. The drawing statement is in bold print.**
4. Type name and title under authorized signature and provide documentation of authorized signature.

REQUEST FOR OFFER GUARANTEE RETURNS

If you elect to have a letter of cancellation returned to you via e-mail only for cancellation of your Offer Letter of Credit, please provide information below:

Send a signed authorization to cancel the Offer LOC to the following point of contact via e-mail address:_____

Contact Phone Number: _____

SAMPLE - PAYMENT AND PERFORMANCE LETTER OF CREDIT
BANK LETTERHEAD
IRREVOCABLE STANDBY LETTER OF CREDIT

Date:_____

To: U.S. Department of Energy
Strategic Petroleum Reserve
900 Commerce Road East
New Orleans, LA 70123
Attn: (Mary Roark)

AMOUNT OF LETTER OF CREDIT: U.S.$_____(_____)

CONTRACTOR:_____

CONTRACT NO:_____

LETTER OF CREDIT NO: _____

EXPIRATION DATE: _____

AMERICAN BANKERS ASSOCIATION (ABA) NO: _____

To whom it may concern:

We hereby establish in the U.S. Department of Energy's favor our irrevocable standby Letter of Credit effective immediately for the account of our customer's above contract with the U.S. Department of Energy for the exchange of Strategic Petroleum Reserve petroleum.

This letter of credit is available by your draft/s at sight, drawn on us and accompanied by a manually signed statement that the signer is an authorized representative of the Department of Energy, and one or more of the following statements:

a. **"THIS DRAWING OF U.S. $_____(_____) AGAINST YOUR LETTER OF CREDIT NUMBERED _____ DATED _____, IS DUE THE U.S. GOVERNMENT BECAUSE (CONTRACTOR'S NAME) HAS FAILED TO RECEIVE THE SPR CRUDE OIL IN ACCORDANCE WITH THE TERMS OF CONTRACT NO. _____, INCLUDING ANY AMENDMENTS THERETO."**

b. **"THIS DRAWING OF U.S. $_____(_____) AGAINST YOUR LETTER OF CREDIT NUMBERED _____ DATED _____, IS DUE THE U.S. GOVERNMENT BECAUSE (CONTRACTOR'S NAME) HAS FAILED TO DELIVER RETURN EXCHANGE OIL IN ACCORDANCE WITH THE TERMS OF CONTRACT NO. _____, INCLUDING ANY AMENDMENTS THERETO."**

c. **"THIS DRAWING OF U.S. $_____(_____) AGAINST YOUR LETTER OF CREDIT NUMBERED _____ DATED _____, IS DUE THE U.S. GOVERNMENT BECAUSE (CONTRACTOR'S NAME) HAS FAILED TO MAKE FINAL RECONCILIATION PAYMENT IN ACCORDANCE WITH THE TERMS OF CONTRACT NO. _____, INCLUDING ANY AMENDMENTS THERETO."**

Drafts must be presented for payment on or before the expiration date of this Letter of Credit at our bank. The Government may make multiple drafts against this Letter of Credit.

Upon receipt of the U.S. Department of Energy's demand by hand, mail express delivery, or other means, at our office located at_____, we will honor the demand and make payment, by 3 p.m. Eastern Time of the third business day following receipt of the demand by wire transfer of funds as a deposit to the account of the U.S. Treasury over the Fedwire Funds Service. The information to be included in each transfer will be as provided in the above referenced contract.

This Letter of Credit is subject to the Uniform Customs and Practice for Documentary Credits (2007 Revision, International Chamber of Commerce Publication no. 600) and except as may be inconsistent therewith, to the Uniform Commercial Code in effect on the date of issuance of this Letter of Credit in the state in which the issuer's head office within the United States is located.

We hereby agree with you that all drafts drawn under and in compliance with the terms of this Letter of Credit will be duly honored upon presentation and delivery of the above documents for payment at our bank on or before the expiration date.

In the event of a bankruptcy filing by the applicant prior to the expiration date of this letter of credit, the expiration date of this letter of credit will automatically be extended by one hundred twenty (120) calendar days from the expiration date.

Address all communications regarding this Letter of Credit to (name and phone number).

Very truly yours,

_____
(Authorized Signature)

_____
(Typed Name and Title)

INSTRUCTIONS FOR PAYMENT AND PERFORMANCE GUARANTEE LETTER OF CREDIT

1. The depository institution must be an account holder with the Federal Reserve Banking system with permission to send Fedwires and must have Fedwire eligibility Funds status of either Eligible or Eligible – Settlement-only.
2. Letter of Credit must not vary in substance from this attachment. Provide a copy of this attachment to your bank.
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4. Type name and title under authorized signature and provide documentation of authorized signature.